

Smt. Nivedita Fatura vs Sh. Aditya Fatura on 17 September, 2019

Author: Ajay Mohan Goel

Bench: Ajay Mohan Goel

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA

CMPMO No.: 74 of 2019.

Decided on: 17.09.2019.

Smt. Nivedita FaturaPetitioner.

Versus

Sh. Aditya Fatura . . .Respondent.
Coram

The Hon'ble Mr. Justice Ajay Mohan Goel, Judge.

Whether approved for reporting?1 No

For the petitioner : Mr. H.S. Rangra, Advocate.

For the respondent : Mr. Satyen Vaidya, Sr. Advocate

with Mr. Varun Chauhan,
Advocate.

Ajay Mohan Goel, Judge (Oral)

By way of this petition filed under Article 227 of the Constitution of India read with Section 24 of the Civil Procedure Code, a prayer has been made for transfer of H.M.A. No. 27-D/III/2015, titled as Aditya Fatura Vrs Smt. Navedita Fatura, which is presently pending adjudication before the Court of learned Additional District Judge (2), Kangra at Dharamshala, District Kangra, to the Court of learned District Judge, Mandi, District Mandi, HP.

2. The case of the petitioner is that respondent, who is her husband, has filed a divorce petition against her under .

Section 13 of the Hindu Marriage Act. This petition has been filed at Dharamshala. The petitioner is residing at Mandi town with her parents. She is unemployed. She has a minor child to take care of and in these circumstances, it is not practical and feasible for her to defend herself in the proceedings so r initiated against her at Dharamshala.

Accordingly, a prayer has been made that in the interest of justice, the case be transferred to the appropriate Court at Mandi so that the petitioner is in a position to defend herself in a proper way.

3. Learned Counsel for the petitioner submits that proceedings which have been initiated by the petitioner against the respondent under the provisions of the Protection of Women from Domestic Violence Act, 2005, are also at Mandi and therefore also, it will be in the interest of justice and both parties, in case, both matters are heard at one station.

4. Learned Senior Counsel appearing for the respondent submits that the distance between the Mandi and Dharamshala towns is not all that much which may call for issuance of any direction for transfer of the case from Dharamshala to Mandi and accordingly, he submits that as .

the petition has been rightly filed at the place where the parties last resided together, therefore, there is no need to transfer the case as prayed for.

5. I have heard learned Counsel for the parties and also perused the documents appended with the petition.

6. Though, it is the contention of the petitioner that she is an unemployed lady and this fact has been denied by learned Senior Counsel appearing for the respondent, however, nothing has been placed on record by the respondent from which it can be deciphered that the petitioner is gainfully employed. She has a five years old daughter to look after. Presently, she is residing at Mandi with her parents and is dependent upon them, not only for her upkeep but probably for the upkeep of her minor child also. It is also not in dispute that proceedings which have been initiated by the petitioner against the respondent under the Protection of Women from Domestic Violence Act, 2005, are pending at Mandi and the respondent is defending himself in the said proceedings at Mandi.

7. In these peculiar circumstances, this Court is of the view that it will be in the interest of justice, in case, .

proceedings filed by the respondent against the petitioner under Section 13 of the Hindu Marriage Act, i.e. H.M.A. No. 27-D/III/2015, titled as Aditya Fatura Vrs Smt. Navedita Fatura, presently pending adjudication before the Court of learned Additional District Judge (2), Kangra at Dharamshala, r are ordered to be transferred from Dharamshala to appropriate Court at Mandi. Ordered accordingly. Consequently, H.M.A. No. 27-D/III/2015, titled as Aditya Fatura Vrs Smt.

Navedita Fatura, which is presently pending adjudication before the Court of learned Additional District Judge (2), Kangra at Dharamshala, is ordered to be transferred to the Family Court, Mandi, District Mandi, H.P. The petition stands disposed of in above terms, so also pending miscellaneous application(s), if any. There is no order as to costs.

(Ajay Mohan Goel) Judge Sept. 17, 2019 (narender)